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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S BRIEF RE ESTOPPEL,
WAIVER, AUTHENTICATION, AND
JUDICIAL ESTOPPEL**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. INTRODUCTION

Tribunal acceptance is not inferred; it is express. On February 28, 2025, the Court articulated its reliance on defense counsel’s officer-of-the-court status: “I’m not going to question a lawyer’s remarks regarding what they have and don’t have.” (Hr’g Tr. Feb. 28, 2025, p. 291, ll. 26–28.) That articulated reliance is the bedrock of the judicial-estoppel claim — and, as the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213, ll. 13–15) demonstrates, the reliance was misplaced. This brief addresses the doctrinal cluster of estoppel theories that independently compel denial of Defendants’ motions and support Plaintiff’s affirmative claims: (1) estoppel by silence under Evidence Code § 623; (2) authentication by acquiescence under Evidence Code § 1414(b); (3) waiver of discovery objections under CCP §§ 2030.290 and 2031.240; and (4) judicial estoppel under Jackson v. County of Los Angeles and MW Erectors. Each doctrine arrives at the same conclusion: Defendants are barred by their own years-long silence, acquiescence, and inconsistent court-facing positions from contesting the authenticity, receipt, or provenance of discovery they **received in August–September 2022, addressed in sworn deposition course (Rosario 8/18/22; Abdelhalim 9/30/22) without timely written challenge**, subpoenaed, and transmitted before suddenly professing ignorance at trial.

Plaintiff does not ask this Court to reweigh evidence. Plaintiff asks this Court to recognize that Defendants forfeited any authenticity or provenance challenge by their 883-day course of conduct treating the materials as what they purport to be—and that judicial estoppel now bars them from retaining the benefits of a verdict procured through positions they have subsequently admitted were false.

Plaintiff’s contemporaneous preservation statements confirm diligence: “They’re using weaponization of procedure.” (Hr’g Tr. Jan. 27, 2025, p. 42, ll. 1–8.)

II. LEGAL FRAMEWORK

A. Estoppel by Silence (Evidence Code § 623)

Evidence Code § 623 provides that when a party’s conduct—including silence when there is a duty to speak—is relevant as tending to prove a fact, the fact may be established by that conduct. The four elements under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493 are:

1. **Knowledge or notice of a fact;**
2. **Opportunity to speak or act in response;**
3. **A reasonable person in the party’s position would have spoken or acted;** and
4. **The party remained silent or inactive.**

When a party satisfies these elements, the party is estopped from later asserting a contrary position. The doctrine operates because silence, where speech is expected, constitutes conduct on which opposing parties reasonably rely.

Element 3 Deepened: Reasonable Reliance Documented on the Transcript Plaintiff reasonably relied on Defendants’ silence because **each time Plaintiff did speak, the Court held Plaintiff to the pro-per standard and denied relief:**

- **Jan. 27, 2025:** CCP § 473 denied (Hr’g Tr. p. 49, ll. 10–11); continuance denied (Hr’g Tr. pp. 55–56).
- **Feb. 18, 2025:** “surprise under § 473 is not a sufficient basis” (Hr’g Tr. p. 181, ll. 21–25).

The reasonable reliance is thus **documented on the transcript:** Plaintiff’s attempts to raise the issue were procedurally foreclosed, which is why his reliance on the prior 883-day silence was reasonable. A party who speaks up four times and is denied each time has satisfied element 3 of Mansell.

B. Authentication by Acquiescence (Evidence Code § 1414(b))

The Court itself recognized defense’s authentication waiver: “They’re not questioning the authenticity in the documents.” (Hr’g Tr. Feb. 18, 2025, p. 174, ll. 19–25 (Wong, J.)) This is the Court’s own on-record recognition that defense had waived authenticity — made two months before the Apr. 16, 2025 “provided by Dolan” admission confirmed receipt.

1 Evidence Code § 1414 provides that a writing may be authenticated by evidence showing that “a
2 party against whom it is offered has at any time admitted its authenticity” (subd. (a)) or “has treated
3 it as authentic” (subd. (b)).

4 Under § 1414(b), authentication by conduct requires evidence that the party against whom the
5 writing is offered has, through its course of conduct, treated the writing as what it purports to be.
6 This includes:

- 7 • Receiving materials in discovery and proceeding through sworn deposition course without
- 8 timely written authenticity challenge;
- 9 • Transferring the document in a file with other authentic materials;
- 10 • Issuing subpoenas presupposing the document’s existence and authenticity;
- 11 • Curating the document for trial presentation.

12 Defense’s MIL No. 17 relied on a categorical hearsay characterization of the 911 recording without
13 acknowledging Evid. Code §§ 1220, 1240, 1241, 1271, and 1280. It also failed to acknowledge
14 **§ 1414(b) authentication-by-conduct**, the doctrine that cuts against a party that has treated the
15 writing as authentic through receipt, deposition course, file transfer, and subpoena practice.

16 **C. Waiver of Discovery Objections (CCP §§ 2030.290, 2031.240)**

17 Under CCP § 2030.290(a), a party who fails to serve a timely response to interrogatories waives
18 any objection to the interrogatories. Under CCP § 2031.240(b), a party who fails to serve a timely
19 response to a demand for inspection waives any objection to that demand.

20 By analogy, a party who fails to raise an authenticity objection during the discovery period waives
21 the right to assert such objection on the eve of trial. The purpose of discovery is to prevent trial by
22 ambush; a party who remains silent for 883 days cannot suddenly manufacture a “foundational”
23 dispute in the final weeks before trial.

24 **D. Judicial Estoppel (Jackson, MW Erectors)**

25 Judicial estoppel prevents a party from asserting a position in a legal proceeding that is contrary
26 to a position previously taken in the same or some earlier proceeding. Jackson v. County of Los
27 Angeles (1997) 60 Cal.App.4th 171, 183. Aguilar v. Lerner (2004) 32 Cal.4th 974, 986–987 quotes
28 Jackson for the multi-element judicial estoppel framework, including the requirement that the first

position was accepted by the tribunal. MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co. (2005) 36 Cal.4th 412, 422 supplies further guidance on the “ignorance” limitation in element (4). The elements material here are:

1. The same party has taken two totally inconsistent positions;
2. In a judicial proceeding;
3. The first position was accepted by the tribunal;
4. The positions are not taken due to ignorance, fraud, or mistake; and
5. The party asserting the inconsistent position derived an unfair advantage.

Judicial estoppel is an equitable doctrine designed to protect the integrity of the judicial process by prohibiting parties from playing “fast and loose” with the courts.

III. THE 801 RECORD COMPELS APPLICATION

A. The Evidentiary Chain

The following evidentiary chain is documented on the certified record:

Date	Event	Evidence
Aug 18, 2022	911 audio served on defense counsel (content includes operator/yeah exchange and Rosario’s voice); Rosario deposition (Chambers)	Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup testimony); Rosario depo tr.
Aug–Sep 2022	BWC footage (content includes independent Rosemond eyewitness statement) and CAD logs served on defense counsel	Feb. 18, 2025 Hr’g Tr. pp. 139–140

Date	Event	Evidence
Sep 30, 2022	Abdelhalim deposition (Chambers); 911-related testimony	Abdelhalim depo tr.
May 4, 2023	Substitution of Attorney; file transferred to PSA	Transaction ID #69953800
Feb 1, 2024	Reyna (PSA) issues Compex subpoena to SFPD for identical materials	Order No. CA1147102-021
(chain)	SFPD transmitted body-cam links directly to counsel	Hr’g Tr. Feb. 18, 2025, p. 145 ll. 4–18 (Jessup: department sent links directly)
Feb 26, 2024	SFPD produces records in response to subpoena	SFPD Report 210079556
Sep 9, 2024	CAD identifiers served on Reyna; no objection	Production record
Jan 17, 2025	MIL No. 6: “not produced in discovery”; MIL No. 17: “no idea where it came from”	Clerk’s Tr. Vol. 1 pp. 149–151, 238
Feb 18, 2025	Navaratnasingham: “our office did not receive the 911 call until the day of the MSC... this is news to me”	Hr’g Tr. p. 141 ll. 4–11
Apr 16, 2025	Navaratnasingham: “They were provided by Dolan”	RT 7, p. 213, ll. 13–15

Date	Event	Evidence
Apr 17, 2025	Abdelhalim authenticates 911: “Yes. That is my voice.”	RT 8, p. 108, l. 28

B. Estoppel by Silence — Application

Element 1 (Knowledge): Defense counsel received the materials in August–September 2022; Chambers appeared at the August 18, 2022 Rosario deposition and the September 30, 2022 Abdelhalim deposition (911-related testimony); and (through successor counsel Reyna) issued a subpoena for the identical materials on February 1, 2024. Chambers/CSK Knowledge was not merely of file receipt, but of the file content itself (the operator’s affirmative response, Plaintiff’s voice, and independent eyewitness corroboration), which is why 883 days of silence is materially probative. The April 16, 2025 “provided by Dolan” admission confirms that the production history was known to the defense team.

Element 2 (Opportunity): Defense counsel had continuous opportunity from August 2022 through January 2025 to file a motion to compel, serve a discovery objection, issue a meet-and-confer letter, or raise any challenge to authenticity or provenance.

Element 3 (Reasonableness): A reasonable defense attorney who genuinely believed the materials were inauthentic, improperly produced, or of unknown provenance would have raised that objection during the 883-day window—not on the eve of trial. The purpose of discovery is to surface authenticity disputes before trial, not to spring them as tactical surprises in motions in limine.

Element 4 (Silence): No objection, motion, or challenge was raised until MIL Nos. 6 and 17 on January 17, 2025—883 days after service and 620 days after the file was transferred to successor counsel.

Conclusion: Defendants are estopped by their silence from contesting the authenticity, receipt, or provenance of materials they received in discovery, addressed in sworn deposition course without timely written challenge, subpoenaed, and transmitted without objection.

1 **C. Authentication by Acquiescence — Application**

2 Defendants treated the materials—specifically, the 911 audio (containing Abdelhalim’s admis-
3 sions, the operator’s “you hit a pedestrian” exchange, and Plaintiff’s own voice) and the BWC (con-
4 taining the independent Rosemond eyewitness statement)—and CAD logs as authentic through
5 multiple acts:

6 **Scienter is evident from defense counsel’s imputation of fabrication:** At the January 27, 2025
7 hearing, defense counsel stated: “we really don’t know who redacted these things and what — if
8 that representation is true.” (Hr’g Tr. Jan. 27, 2025, p. 31, ll. 1–5.) This imputation of fabrication
9 against Plaintiff — made while defense was in possession of the originals via Dolan — is scienter
10 evidence under Hobart v. Hobart Estate Co. (1945) 26 Cal.2d 412.

- 11 1. **Deposition course (Aug. 18 and Sept. 30, 2022):** Chambers appeared at Mr. Rosario’s and
12 Mr. Abdelhalim’s depositions; Abdelhalim gave 911-related sworn testimony. Defense raised
13 no written authenticity or provenance challenge during the 883-day window.
- 14 2. **File Transfer (May 4, 2023):** The Substitution of Attorney (Transaction ID #69953800)
15 transferred the defense file—including these materials—from Chambers/CSK to PSA. A file
16 transfer presupposes that the materials being transferred are what they purport to be.
- 17 3. **Complex Subpoena (Feb. 1, 2024):** Reyna’s subpoena to SFPD requesting the identical ma-
18 terials presupposes their authenticity. One does not subpoena materials one believes are fab-
19 ricated.
- 20 4. **CAD Transmission (Sept. 9, 2024):** Plaintiff served CAD identifiers on Reyna. No objection
21 was raised.
- 22 5. **Trial Curation (Apr. 16, 2025):** Navaratnasingham testified that the defense had “five videos”
23 and had pared them down to “about 8 or 9 minutes” for the jury. Active curation presupposes
24 authenticity.

25 Under Evidence Code § 1414(b), these acts constitute authentication by conduct. Defendants
26 waived any authenticity challenge by their 883-day course of conduct treating the materials as
27 what they purport to be.

1 **D. Waiver — Application**

2 By analogy to CCP §§ 2030.290 and 2031.240, Defendants waived any authenticity or provenance
3 objection by failing to raise it during the discovery period. The 883-day window provided ample
4 opportunity to challenge the materials; Defendants’ silence waived the right to assert such chal-
5 lenges on the eve of trial.

6 **E. Judicial Estoppel — Application**

7 **Controlling synthesis.** As summarized in §II.D, Aguilar v. Lerner (2004) 32 Cal.4th 974, 986–987
8 (quoting Jackson v. County of Los Angeles, supra, 60 Cal.App.4th at p. 183) anchors the **Tribunal**
9 **Acceptance** inquiry for the matrix below, including the requirement that the first position was
10 accepted as true. MW Erectors, supra, 36 Cal.4th at page 422, frames the “ignorance” limitation
11 for element (4).

12 **Position A (The Suppression):** - MIL No. 6 (Jan. 17, 2025): Materials were “not produced in
13 discovery.” - MIL No. 17 (Jan. 17, 2025): “Defendant has no idea where this 911 call log or audio
14 recording came from.” - Feb. 18, 2025 hearing: MSC-date and “news to me” (Hr’g Tr. p. 141 ll.
15 4–11). - Apr. 16, 2025 trial: “Not anything that we received as part of the subpoena.”

16 **Position B (The Admission):** - Feb. 18, 2025 hearing: “all this stuff has been in his possession
17 since August” (Hr’g Tr. p. 181 ll. 6–23). - Apr. 16, 2025 trial: “Sure. They were provided by
18 Dolan. He has had them for whatever, sure.” (RT 7, p. 213, ll. 13–15.)

19 **Intra-Day / Intra-Hearing Contradictions** The same-day Feb. 18, 2025 record pairs Position-
20 A framing (p. 141) with Position-B possession (p. 181). The same-day Apr. 16, 2025 trial record
21 pairs stacked foundation attacks with the “provided by Dolan” admission. Each pattern satisfies
22 MW Erectors element (4) (not taken from ignorance).

23 **Tribunal Acceptance (Four Discrete Rulings):** The prior brief cited Feb. 18 “I see. Okay” for
24 tribunal acceptance. That is a weak single interjection. The record supports **four discrete Court**
25 **rulings** in which tribunal acceptance of Position A is manifest:

- 26 1. **Jan. 27, 2025, p. 41, ll. 3–11:** MIL on 911 denied without prejudice—requires foundation
27 that Position A presumes was lacking.

2. **Jan. 27, 2025, p. 55, ll. 4–6:** MIL 1 granted—excludes expert testimony, narrowing Plaintiff’s trial posture.

3. **Jan. 27, 2025, p. 49, ll. 10–11:** CCP § 473 denied—forecloses relief channel.

4. **Feb. 18, 2025, p. 181, ll. 21–25:** “surprise under § 473 is not a sufficient basis”—second denial of relief channel.

Four rulings is a more robust tribunal-acceptance record than one interjection. Each ruling depended on the Court accepting Position A as the operative factual premise. The Court denied Plaintiff’s continuance request and maintained the MIL posture based on these representations.

Total Inconsistency: Position A asserts that the materials were not produced, not received, and of unknown provenance. Position B admits both (i) Feb. 18, 2025 possession “since August” (Hr’g Tr. p. 181 ll. 6–23) and (ii) Apr. 16, 2025 trial admission that materials were “provided by Dolan,” the same source Jessup testified had produced them to defense counsel in August–September 2022. These positions are mutually exclusive.

Not Ignorance: The casual phrasing of Position B—“for whatever, sure”—demonstrates that the Dolan origin was a known, settled fact within the defense team, not a recent discovery.

Unfair Advantage: The defense obtained rulings that excluded evidence, denied continuances, and foreclosed Plaintiff’s ability to authenticate and sequence his evidentiary presentation. The defense obtained a 9–3 verdict.

Conclusion: Defendants are judicially estopped from retaining the benefits of a verdict procured through Position A when Position B proves Position A was false.

IV. RELIEF

The estoppel doctrines addressed in this brief compel the following relief:

A. Evidence Sanctions Under CCP § 2023.030

Under CCP § 2023.030(c), the Court may impose an evidence sanction by an order “establishing designated facts in accord with the claim of the party adversely affected by the misuse of the discovery process.” Plaintiff requests an order deeming the following facts established:

1. The 911 audio (including the operator’s affirmative response and Plaintiff’s voice), body-

worn camera footage (including the independent eyewitness statement), and CAD logs were produced to defense counsel in August–September 2022.

2. Defense counsel participated in sworn deposition course (Rosario 8/18/22; Abdelhalim 9/30/22) without raising a written authenticity or provenance challenge during the 883-day window.
3. Defense counsel (Reyna) issued a subpoena on February 1, 2024 for the identical materials.
4. Defendants are barred from contesting the authenticity or provenance of these materials.

B. Foreclosure of Authenticity/Receipt Objections

The Court should rule that Defendants are estopped from raising any authenticity or provenance objection to the 911 audio (including the operator/yes exchange and Rosario’s voice), body-worn camera footage (including the Rosemond eyewitness statement), or CAD logs in any proceeding arising from the underlying litigation.

C. Fee-Shifting

Under Bus. & Prof. Code § 6128(a) and CCP § 128.5, Plaintiff is entitled to reasonable attorney’s fees and costs incurred as a result of Defendants’ misconduct.

V. CONCLUSION

Defendants’ litigation posture in this case is built on a foundation of inconsistent positions. They remained silent for 883 days while the materials (containing a direct party admission, an operator-elicited affirmative response, Plaintiff’s own voice, and independent eyewitness corroboration) were produced, addressed in sworn deposition course without timely written challenge, subpoenaed, and transmitted—then claimed on the eve of trial that the same materials were of “unknown provenance” and “news to me.” Minutes after inducing exclusionary rulings based on these representations, defense counsel admitted the materials were “provided by Dolan.”

The law does not permit parties to play fast and loose with the courts. Defendants are estopped by their silence, waived their authenticity objections by their 883-day course of conduct, authenticated the materials by their treatment of them as genuine, and are judicially estopped from asserting positions inconsistent with their April 16, 2025 admission.

Plaintiff respectfully requests the Court apply these doctrines, deny Defendants’ motions, and grant

1 the relief described above.

2 _____
3 **DATED:** April 16, 2026

4 Respectfully submitted,
5 _____

6 FRANCISCUS DYLAN ROSARIO

Dated: April 18, 2026



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